

George, Thomas Moundford, John Argent, John Taylor, and William Bowden, say, that the aforesaid Thomas Bonham ought not to have his action aforesaid against them, because they say, that before the aforesaid time when it is supposed the aforesaid trespass and imprisonment to be done, the lord Henry the Eighth, late King of England, &c. on the 23d day of September, in the 10th year of his reign by his letters patent (which the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, sealed with his Great Seal of England, bearing date at Westminster the same day and year, bring here into Court) reciting (that) whereas he thought it the duty of his kingly office, in all reason, to provide for the good and welfare of his people, *that* would (*i.e.* ought) first of all to be done if he might in due season meet with enterprizes of wicked men: first, therefore, he held it necessary to restrain the boldness of wicked men, who professed physic more for avarice than out of confidence of a good conscience; whereupon very many incommodities did arise, to the rude and credulous common people: therefore, partly imitating the example of the well governed cities in Italy, and many other nations, and partly inclined thereunto, at the request of the great men and doctors, John Chambre, Thomas Linacre, Ferdinand de Victoria, his physicians, and of Nicholas Hatswel, John Francisco, and Robert Yaxley, physicians, and chiefly of the Right Reverend Father in Christ, and Lord Thomas (Wolsey) titled of the Holy Church beyond Tyber, priest of the most Holy Church of Rome, Cardinal of York, Archbishop, and our well beloved Chancellor of our kingdom of England; a college perpetual of doctors and grave men, who physic in his City of London, and the suburbs, and within seven miles from the said city every way, might publicly exercise, he willed and commanded to be instituted, to whom both for his honour, and in the name of the public good, and care (as he hoped) the ignorance and rashness of the malicious (which he remembered) as well by their example and gravity to deter, as by his laws late made, and by constitutions to be made by the same college to punish; which that they might more easily well accomplish, to the remembered doctors John Chambers, Thomas Linacre, Ferdinand de Victoria, his physicians, Nicholas Hatswel, John Francisco, and Robert Yaxley, physicians, he granted, [108 a] that they, and all men of the same faculty, of and in the city aforesaid, should be in deed and name, one body and commonalty perpetual, or college perpetual, and that the said commonalty or college every year for ever might choose and make of that commonalty any prudent man, and skilful in the faculty of physic, to be president of the said college or commonalty, to oversee, recognize, and govern, for that year, the college or commonalty aforesaid, and all men of the said faculty, and their businesses; and that the said president and college or commonalty, should have perpetual succession, and a common seal, to serve for the businesses of the said commonalty and president for ever; and that they and their successors for ever should be persons able and capable to purchase and possess in fee and perpetuity, lands, tenements, rents, and other possessions whatsoever: he also granted to them and their successors, for him and his heirs, that they and their successors might purchase to them and their successors, as well in the said city as out of it, lands and tenements whatsoever, not exceeding the yearly value of 12l. notwithstanding the statute of alienation in mortmain: and that they, by the name of President of the College or Commonalty of the Faculty of Physicians, London, might plead, or might be impleaded, before whatsoever Judges, in all Courts and actions whatsoever; and that the aforesaid president and college, or commonalty, and their successors, lawful assemblies, and honest of themselves, and statutes and ordinances for the wholesome government, oversight, and correction of the college or commonalty aforesaid, and of all men of the same faculty in the same city, or within seven miles' circuit of the said city, exercising, according to the exigence or necessity (as often, and when need was) might lawfully, and without peril make, without the hindrance of the said late King, his heirs or successors whatsoever, his justices, escheators, sheriffs, and other his bailiffs and ministers, his heirs and successors whatsoever: he also granted to the said president and college, or commonalty, and their successors, that none in the said city, or seven miles in circuit thereof, do exercise the said faculty unless to this, by the said president or commonalty, or their successors, (who for the time should be) he be admitted by the letters of the said president and college, with their common seal sealed, upon the penalty of 100s.